

CV-24-008809 TIMMINS, LACEY vs CLEARCAPITALCOM INC – a) Plaintiff's Motion for an Order Compelling Further Responses to Special Interrogatories from Rocket Mortgage, LLC and for Monetary Sanctions - HEARING REQUIRED; b) Plaintiff's Motion for an Order Compelling Further Responses to Request for Production from Rocket Mortgage, LLC and for Monetary Sanctions - HEARING REQUIRED; c) Plaintiff's Motion for an Order Compelling Further Responses to Special Interrogatories from ClearCapital.com, Inc. and for Monetary Sanctions - HEARING REQUIRED; d) Plaintiff's Motion for an Order Compelling Further Responses to Request for Production from ClearCapital.com, Inc. and for Monetary Sanctions - HEARING REQUIRED; e) Defendant Clear Capital's Motion to Phase Discovery to Address Plaintiff's Standing and Individual Claims First - HEARING REQUIRED; f) Defendant Rocket Mortgage, LLC's Motion to Sequence Discovery - HEARING REQUIRED;

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: a-f) HEARING REQUIRED. Counsel shall appear to discuss any remaining issues before entry of the Court's order appointing a discovery referee in this matter. With regard to Plaintiffs' claimed financial inability in connection with the referee's fees, the Court finds that Plaintiffs have submitted insufficient evidence on this issue. In addition, based on the discussions between counsel, as reflected in email correspondence submitted by Defendants, the Court notes that Plaintiffs have expressed willingness to share in the fees of their counsel's preferred referee, Judge Morrow, who charges only 5% less than Judge Massullo in this regard. Therefore, the Court intends to enter an order confirming the appointment of Judge Massullo, with the requisite fees to be shared equally between the respective parties to each referred dispute.

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Therefore, the Court intends to enter an order confirming the appointment of Judge Massullo, with the requisite fees to be shared equally between the respective parties to each referred dispute.